

24SMCV04521 24SMCV04521

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-04

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Case Number: 24SMCV04521 Hearing Date: August 4, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

KW El Camino, LLC,

Plaintiff,

v.

L.E Waters Construction Co., Inc.

Defendants.

Case No.: 24SMCV04521

Hearing Date: August 4, 2026

[TENTATIVE] order RE:

CROSS-DEFENDANT TOFT DE NEVERS

& LEE'S MOTION TO QUIASH CROSS-

COMPLAINANT LIBERTY GLASS &

METAL, INC.'S SERVICE OF SUMMONS

of FIRST AMENDED CROSS-

COMPLAINT

This hearing is on Cross-Defendant Toft De Nevers & Lee's motion to quash the cross-complaint of Cross-Complainant Liberty Glass & Metal, Inc.'s service of summons of the First Amended Cross-Complaint. However, default was entered against Toft on the cross-complaint on July 1, 2026. A defaulted defendant cannot participate in litigation until the default is vacated.

As a general rule, "the entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until ... the default is set aside." (Humphrey v. Bewley (2021) 69 Cal.App.5th 571, 580.) "Any motion by a defaulted defendant, other than a motion to set aside the default, is unauthorized and void" and has "no legal effect." (Id.; Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385; A&B Metal Products v. MacArthur Properties, Inc. (1970) 11 Cal.App.3d 642, 647; Christerson v. French (1919) 180 Cal. 523, 525.) Accordingly, the Court denies Toft's motion to quash service of summons.

DATED: August 4, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court